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April 21, 2026

ENGROSSED HOUSE
BILL NO. 1937

By: Kannady and Lowe of the
House

and

Howard of the Senate

An Act relating to schools; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), which relates to student communication; defining term; requiring a corroborated report in order to place school personnel on administrative leave during an investigation; removing requirement that incidents be noted in employee files; providing for reinstatement under certain circumstances; requiring inclusion of finding in employee file; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L.
2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as
follows:

Section 6-401. A. As used in this section:

1. "Electronic or digital communication" includes, but is not limited to, emails, text messages, instant messages, direct messages, social media messages, messages sent through software

1 applications, and any other electronic or digital means of
2 communication; ~~and~~

3 2. "School personnel" means teachers, coaches, administrators,
4 school bus drivers, or any other persons employed full-time or part-
5 time by a public school or charter school; and

6 3. "Student" means a person enrolled in a public school or
7 charter school in this state receiving primary or secondary
8 education to obtain a standard high school diploma or high school
9 equivalency diploma. Student does not mean a person who holds a
10 standard high school diploma or high school equivalency diploma.

11 B. School personnel engaging in electronic or digital
12 communication with an individual student shall include the student's
13 parent or legal guardian in any electronic or digital communication,
14 unless such communication is on a school-approved platform and
15 related to school and academic communications.

16 C. Exceptions to the requirement in subsection B of this
17 section may be made in case of an emergency as determined by the
18 local school board, subject to subsequent notification to the parent
19 or legal guardian. School personnel shall make reasonable efforts
20 to use school-approved platforms, systems, or applications that
21 allow automatic inclusion of parents or legal guardians in
22 communications with students.

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1 D. Schools shall provide training, developed by the State
2 Department of Education, for school personnel on the student
3 communication requirements of this section.

4 E. Any school personnel who is ~~reported to be~~ the subject of a
5 corroborated report of being in violation of subsection B of this
6 section shall be put on administrative leave while the school
7 district investigates the incident and notifies the board of
8 education. If the investigation finds that no misconduct occurred,
9 ~~the school personnel shall be reinstated and~~ the incident shall not
10 be noted in the school personnel's employee file. If the school
11 personnel was placed on administrative leave during the
12 investigation of the incident but the investigation finds that no
13 misconduct occurred, the school personnel shall be reinstated and
14 the school personnel's employee file shall include a note of the
15 finding of no misconduct. If the investigation finds misconduct
16 occurred, the school personnel shall be disciplined according to the
17 school district board of education's policy, up to and including
18 termination of employment, and the incident shall be reported to law
19 enforcement pursuant to Section 1210.163 of ~~Title 70 of the Oklahoma~~
20 ~~Statutes~~ this title.

21 SECTION 2. This act shall become effective July 1, 2026.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
24

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
4 April 21, 2026 - DO PASS
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